

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
Crystal Portorreal,: Index Number:
: Date Purchased:
: Date Filed:

Plaintiffs : SUMMONS

-against- :

City of New York, New York City Police Department, :
Police Officer Scott Smith, Shield 10427 of the 44 Precinct, :
Police Officer Diego Jimenez, Shield 14777 of the 44 :
Precinct, Police Officer Enver Lopez, Shield 4474 of the 44 :
Precinct and New York City Police Officers John Doe, :: Plaintiff's residence is:
: 2070 Grand Concourse
: Bronx, NY 10457

Defendants

-----X

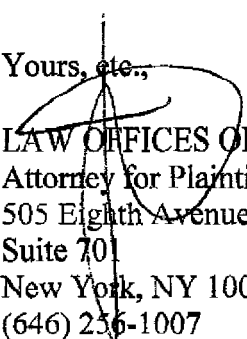
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: December 7, 2017
New York, NY

Yours, etc.,


LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiff
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Scott Smith, Shield 10427 of the 44 Precinct

Police Officer Diego Jimenez, Shield 14777 of the 44 Precinct

Police Officer Enver Lopez, Shield 4474 of the 44 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Crystal Portorreal,
:
:
Plaintiffs : VERIFIED COMPLAINT
:
-against- :
:
City of New York, New York City Police Department, :
Police Officer Scott Smith, Shield 10427 of the 44 Precinct, :
Police Officer Diego Jimenez, Shield 14777 of the 44 :
Precinct, Police Officer Enver Lopez, Shield 4474 of the 44 :
Precinct and New York City Police Officers John Doe, :
:
Defendants :
-----X

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Crystal Portorreal (hereinafter referred to as "PORTORREAL") is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Police Officer Scott Smith, Shield 10427 of the 44 Precinct, (hereinafter referred to as "SMITH") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, Police Officer Diego Jimenez, Shield 14777 of the 44 Precinct, (hereinafter referred to as "JIMENEZ") was employed by the New York City Police Department.

4. That at all times hereinafter mentioned, Police Officer Enver Lopez, Shield 4474 of the 44 Precinct, (hereinafter referred to as "LOPEZ") was employed by the New York City Police Department.
5. That at all times hereinafter mentioned, the New York City Police Officers John Doe, the officers involved in the arrest of PORTORREAL, (hereinafter referred to as "DOES") were employed by the New York City Police Department.
6. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
7. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
8. On or about May 4, 2016 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
9. That on September 6, 2018 the Honorable Mitchell Danziger demed the Notice of Claim filed on May 4, 2018 timely as to all causes of action.
10. That on or about July 26, 2018, a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

11. That on or about September 16, 2017 at approximately 5:00AM in the vicinity of 1221 Sheridan Avenue, Apartment 1A, Bronx NY, Plaintiff had just spend the night babysitting for her aunt's children and was getting ready to go to work when she heard a noise at the front door to the above location.

12. That Plaintiff approached the door and did not observe anything unusual inside the apartment.

13. That SMITH, JIMENEZ, LOPEZ and DOES then attempted to enter the above location by pushing in the door and banging on it.

14. That at no time before entering the apartment, did SMITH, JIMENEZ, LOPEZ and DOES identify themselves as police officers.

15. That Plaintiff in an effort to protect her aunt's children, leaned on the door in an effort to keep the door closed.

16. That SMITH, JIMENEZ, LOPEZ and DOES entered the apartment by force, throwing Plaintiff on the ground causing injuries to her wrists and feet

17. That SMITH, JIMENEZ, LOPEZ and DOES then handcuffed and arrested Plaintiff.

18. That at no time did SMITH, JIMENEZ, LOPEZ or DOES have permission or authority to enter the apartment.

19. That at no time did SMITH, JIMENEZ, LOPEZ or DOES have a warrant to enter the apartment.

20. That at no time was there circumstances that amounted to an exception to the warrant clause that permitted SMITH, JIMENEZ, LOPEZ or DOES to forcefully enter the apartment without permission.

21. That even though a male suspect who was fleeing from SMITH, JIMENEZ, LOPEZ and DOES entered the apartment immediately prior to them entering, Plaintiff had no knowledge it.
22. That at no time did Plaintiff hinder the prosecution of anyone.
23. That at not time did Plaintiff obstruct governmental administration.
24. That at no time did Plaintiff resist arrest.
25. That at no time did Plaintiff engage in any unlawful or illegal behavior.
26. That despite engaging in no illegal or unlawful behavior, Plaintiff was arrested.
27. That after Plaintiff was arrested, she was transported to the 44 precinct.
28. That while Plaintiff was inside of said precinct, Plaintiff was held in a holding cell occupied with females for several hours.
29. That while Plaintiff was inside of said precinct, Plaintiff was subjected to a strip search and that nothing of an illegal nature was recovered.
30. That after several hours Plaintiff was removed to Bronx County Central Booking located at 215 East 161 Street, Bronx, NY.
31. That while Plaintiff was held at Bronx County Central Booking, she was held in a cell with other females for several hours.
32. That on or about September 17, 2017 Plaintiff was arraigned on docket 2017BX036463 charging her with Hindering Porsecution in the Third Degree, Obstructing governmental Administration in the Second Degree and Resisting Arrest.
33. That at the time of her arraignment, Plaintiff was released on his own recognizance.
34. That on and between September 17, 2017 and April 30, 2018, Plaintiff made several court appearances until her case was dismissed upon application of the Office of the Bronx District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

35. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.

36. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

37. That as a result of the actions of Defendants, Plaintiff was seriously injured due to the intentional manner in which Defendants, their agents, servants, employees and/or licensees treated Plaintiff and he was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

38. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

39. That as a result of the actions by Defendants, Plaintiff was traumatized and fears her physical safety when she sees and encounters members of the New York City Police Department from that day and onward.

40. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

41. That as a result of the Defendants' actions, Plaintiff missed several days form work.

42. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

43. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 42, as if more fully stated herein at length.

44. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

45. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

46. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 45, as if more fully stated herein at length.

47. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

48. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 47, as if more fully stated herein at length.

49. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are

individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

50. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

51. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 50, as if more fully stated herein at length.

52. At all times pertinent hereto, SMITH, JIMENEZ, LOPEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

53. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that SMITH, JIMENEZ, LOPEZ and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

54. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 53, as if more fully stated herein at length.

55. The City of New York and New York City Police Department's failure to provide adequate training and supervision to SMITH, JIMENEZ, LOPEZ and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

56. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 55 as if more fully stated herein at length.

57. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

58. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of

this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

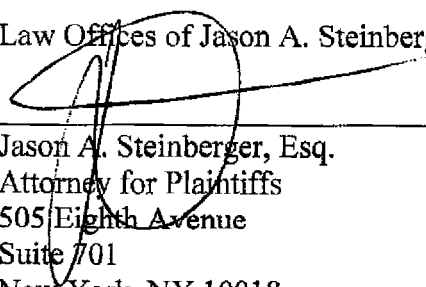
On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

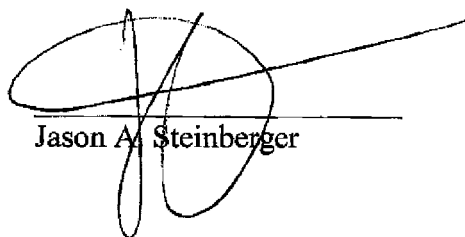


Jason A. Steinberger, Esq.
Attorney for Plaintiffs
505 Eighth Avenue
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New York, NY 10018
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STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: December 7, 2018



Jason A. Steinberger